IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Bail in terms of section 83 of the Poisons, Opium and Dangerous Drugs (Amendment) Act No. 41 of 2022.

Kalinga Rangani Kaushalya

CA Case No: BAL/408/2023
Chief MC- Galle
Case No: B 03288/2022

Suspect

Kodithuwakku Malani Padma,
Pallegallegodawaththa,
Kithulampitiya,
Galle.

Petitioner

Vs.

1. Hon. Attorney General,
   Attorney General's Department,
   Colombo 12.

2. The Officer-in-Charge,
   Police Station,
   Galle.

Respondents

Before: **R. Gurusinghe J.**

&

M.C.B.S. Morais J.

Counsel: Lelani Sirisena for the Petitioner.

Jehan Gunasekara, SC for the Respondents.

Inquiry on: 19.03.2024

Decided On: **16.05.2024**

M.C.B.S. Morais J.

The petitioner is the mother of the suspect in the case bearing number B 03288/2022 in the Magistrate's Court of Galle. The suspect was arrested by the officers attached to the anti-corruption unit of Galle Police on the 05th of October 2022 for having in possession and trafficking a gross quantity of 100 grams and 250 milligrams of 'Diacetylmorphine' alias 'Heroin'. Subsequent to the Report of the Government Analysts the pure quantity of said heroin is said to be 26.65 grams. It is apparent that the suspect has been produced before the Magistrate Court of Galle on the 6th of October 2022 and held in remand custody up to this date.

According to the facts of the case, while raiding a house by the police, the suspect was there and attempted to escape upon seeing the Police. On the suspicion that came with it, she was subjected to a body search and the Police found the illegal substance.

The petitioner has made this application before us under section 83 of the Poisons, Opium and Dangerous Drugs (Amendment) Act, No.41 of 2022. As for the provisions of section 83(2),

> *"83(2) notwithstanding the provisions of sections 84 and 85, a person suspected or accused of an offence under subsection (1) of section 54A and section 54B-*
>
> *(a) of which the pure quantity of the dangerous drug, trafficked, imported, exported, or possessed is ten grams or above in terms of the report issued by the Government Analyst under section 77A; and*
>
> *(b) Which is punishable with death or life imprisonment, shall not be released on bail except by the Court of Appeal in exceptional circumstances."*

The statute does not clarify what exceptional circumstances are. When granting bail to suspects under the Ordinance, our Superior Courts have taken into account a number of circumstances that qualify as exceptional.

In, ***Ramu Thamotharampillai V. The Attorney General*** **[2004] 3 SLR 180**, it was held that;

"the decision must in each case depend on its own peculiar facts and circumstances."

In, ***Labynidarage Nishanthi V. Attorney General*** **CA (PHC) APN 48/2014)**, said that;

"…the term 'exceptional circumstances' has not been explained or defined in any of the statutes. Judges are given a wide discretion in deciding in what creates a circumstance which exceptional in nature."

In, ***Welathanthrage Amila Sampath Botheju V. Attorney General*** **CA/BAL/0239/23**, it was held that;

"…a certain situation amounts to exceptional circumstances or not, has to be considered on a case-by-case basis, unique to each application before the court."

When applied in relation to the material before us, in paragraph 09 of the petition, the petitioner pleads certain grounds which are alleged as exceptional grounds and they are as follows:

a) The 7 years old son of the suspect had been in the custody and under the maintenance of the suspect.
b) Suspect visited Jayasiri's home to redeem a gold chain and a phone pawned and unfortunately suspect was caught in the raid that took place at Jayasiri's house while she was in that house.
c) Prosecution version as per the B report, that 100g and 250 mg was hidden inside suspect's undergarment is improbable and unbelievable as it is impossible to hide such a large quantity inside the undergarment.
d) The suspect visited the Jayasiri's house with her 7 years old child after his school when he was clad in school uniform. And the suspect and her son were taken to the police station. Nobody would do drug business in the presence of their child.
e) No indictment has been filed thus far since the receipt of the Government Analyst Report.
f) Suspect's extended family is depending on the suspect so much. Suspect's father is a retired army officer and a disabled man dependent on the suspect and suspect's two siblings are also taken care of by the suspect.

It is apparent that the suspect has been in remand custody for more than 19 months. Though the Government Analysts Report was sent by them on 30th January 2023, there is nothing to indicate that the suspect has been indicted by the Honorable Attorney General even though over 15 months have lapsed.

According to the petition, the suspect was arrested on or about 05th of October 2022 and the date is confirmed by the certified copy of the Galle Magistrate Court Case No. B 03288/22 which is annexed as "X" by the petitioner.

However, in paragraph '8 (I) and (IV)' of the objections filed by the respondents and supported by paragraph '8' (next to paragraph 4) of the affidavit signed by the Chief Inspector of Police, Sisira Sujeewa Jayaweera, Head Quarters Inspector of the Galle Police state that the suspect was arrested on 26th of June 2020 which is obviously incorrect and it is apparent that respondents have been much negligent in filing their objections which is not a thing which would happen every day.

The petitioner alleges certain improbabilities of the prosecution case which may be considered as weaknesses of the prosecution case.

I am of the view that alleged weaknesses and the period of remand taken together with the gross negligence of the 2nd respondent as mentioned above are sufficient grounds to consider bail.

Accordingly, bail is granted on the following conditions.

1. The accused should provide a cash bail of Rs. 200,000.
2. To provide two acceptable sureties. They must sign a bond of Rs. 2,000,000/= each.
3. The accused should report to the Officer in Charge of the Police Station, Galle on every first Sunday of the month until the conclusion of the matter.
4. The bail should be canceled and/or confiscated upon this accused being arrested again in connection with another offence alleged to have been committed while on bail or on violation of any of the bail conditions.
5. To surrender the passport of the suspect if any, to the court. A travel ban is imposed on the accused. The controller of Immigration and Emigration is to be informed of the travel ban of the accused.

6. The permanent residing address of the accused should be provided to the court, and such residence should not be changed without leave of the court until the conclusion of the case.

Subject to the conditions set out above, bail is granted. The registrar of this court is directed to send copies of this bail order to the Chief Magistrate Court of Galle and the Officer in Charge of the Police Station, Galle to inform due compliance of the suspect to the trial court.

Judge of the Court of Appeal

R. Gurusinghe J.

I agree

Judge of the Court of Appeal